

## 24STCV00989 24STCV00989

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV00989 Hearing Date: August 5, 2026 Dept: 617

Dept.

617

Date:

8-5-26

Case

#: 24STCV00989

Trial

Date: None Set

TRIAL PREFERENCE

MOVING

PARTY: Plaintiffs, Candy Bubar and Edward Bubar

RESPONDING

PARTY: Defendants, Cedars-Sinai Health System, Cedars-Sinai Medical Center, Howard L. Rosner, M.D., Medtronic, Inc., Medtronic USA, Inc., Medtronic Logistics, LLC, and Medtronic Puerto Rico Operations Co.

RELIEF

REQUESTED

Motion

for Trial Preference

SUMMARY  
OF ACTION

Plaintiff

Candy Bubar underwent a refill procedure for her Medtronic SynchroMed II model no. 8637-20 pain pump at the Cedars-Sinai Pain Center in Los Angeles. Defendant Dr. Howard L. Rosner performed the procedure. Immediately after the procedure, Candy became increasingly lethargic and confused, with her vital signs dropping. She then became bradycardic and non-responsive, and emergency medical services transported her to the emergency department. Candy's husband, Edward Bubar, witnessed the entire incident.

Shortly

after arriving at the emergency department, Candy went into cardiac arrest. After receiving CPR and epinephrine injections, her pulse returned approximately 10 minutes later. She was then intubated and admitted to the Neurocritical Intensive Care Unit for 8 days. During her hospitalization, she suffered acute hypoxemic respiratory failure, acute encephalopathy, post-arrest seizures, septic shock, a coma, and hypothermia. The primary cause of her injuries was determined to be baclofen toxicity, or drug overdose.

Candy

now sues Defendants Medtronic, Inc., Medtronic USA, Inc., Medtronic Logistics, LLC, and Medtronic Puerto Rico Operations Co. (collectively, "Medtronic") for: (1) strict product liability – manufacturing defect; (2) negligent manufacturing defect; (3) strict product liability – failure to warn; (4) negligent failure to warn; (5) negligence per se; (6) breach of express warranty; and (7) fraud. She also asserts a claim for medical negligence, among other claims, against Defendants Cedars-Sinai Health System, Cedars-Sinai Medical Center, and Dr. Rosner (collectively, "Cedars Defendants"). Edward brings claims against Defendants for negligent infliction of emotional distress and loss of consortium.

On

May 29, 2026, the Court sustained the demurrer to Candy's sixth cause of action for breach of express warranty.

RULING: Denied without  
prejudice.

Plaintiffs

move for trial preference under Code of Civil Procedure section 36, subdivision (a), arguing that Candy's physical and cognitive condition warrants a preference to protect her litigation interests. The Cedars Defendants and Medtronic oppose the motion. The Cedars Defendants argue that Plaintiffs fail to provide admissible evidence of Candy's age, fails to show that her health makes a trial preference necessary, and that granting a preference would violate due process. Medtronic similarly contends that Plaintiffs have not shown that preference is necessary and presents controverting evidence of Candy's current condition. Because uncontested controverting evidence of Candy's current health shows that preference is not necessary to protect her interests, Plaintiffs' motion is denied without prejudice.

Under

Code of Civil Procedure section 36, subdivision (a), "[a] party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.)

"The

issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's 'health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.'" (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534.)

The

evidence does not demonstrate that a preference is necessary. Plaintiffs' counsel states that Candy has multiple sclerosis and that following her hospitalization "she demonstrated profound neurological and functional impairment." [McCormack Decl. ¶¶ 12-13.] Counsel further avers that "[d]elay in trial will materially prejudice Plaintiff because her neurological condition is

permanent and medically fragile" and therefore a trial preference is necessary to preserve her interest in participating in the case. [Id. ¶¶ 16-17.]

Notably, counsel's assertions regarding Candy's current condition relies on medical records from 2023. [Id. ¶¶ 18-19, Exs. A-B.] Medtronic, however, presents evidence from Candy's May 15, 2026 deposition controverting Plaintiffs' claim of necessity. During her deposition, Candy provided clear and mostly detailed testimony regarding her personal background [Yeung Decl. ¶ 9, Ex. A: Candy's Depo. pp. 12:9-14:24], her medical history and treating physicians [id. at pp. 20:14-28:7], the initial implant of the SynchroMed II pump [id. at pp. 28:19-31:20, 32:6-17, 33:15-34:12], subsequent refill procedures [id. at pp. 38:20-39:21, 40:20-42:11, 45:8-49:10], the January 27, 2023 refill procedure [id. at pp. 55:17-58:10, 59:6-16], her medical rehabilitation [id. at pp. 62:7-24, 64:4-65:11, 76:19-77:4, 78:19-79:1], and her current symptoms [id. at pp. 123:20-124:4, 124:17-126:2, 129:9-24.] Candy also, though limited by her condition, goes to the movies, goes out for coffee with her friends, and attends her grandchildren's sports games as well as USC football home games. [Reid Decl. ¶ 2, Ex. A: Candy's Depo. pp. 142:25-144:9; Yeung Decl. ¶ 10, Ex. B: Edward's Depo. pp. 175:11-176:19.] This evidence is not indicative of a worsening condition threatening Candy's ability to participate in the proceedings on an ordinary trial schedule.

#### Contrary

to Plaintiffs' claim, controverting evidence in opposition to a motion for trial preference need not be "competent medical evidence." (See, e.g., Fox, supra, 21 Cal.App.5th at p. 535 ["If by way of opposition [defendant] had submitted, say, a photograph of 81-year-old Ms. Fox scuba-diving in the Galapagos Islands just last fall, there might be some basis to expect more medical detail . . ."].) While Plaintiffs cite to a portion of Edward's testimony appearing to describe some decline in Candy's cognitive functioning [Yeung Decl. ¶ 10, Ex. B: Edward's Depo. p. 161:1-11] and Candy's own testimony indicated some trouble or inability to recall names of certain physicians or dates, this does not show a worsening physical or cognitive condition that prejudices her ability to participate in the action. Plaintiffs' motion is therefore denied without prejudice and Plaintiffs may refile their motion should they have such evidence.

#### Plaintiffs

to give notice.